

23VECV00587 23VECV00587

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-24

Motion: JUDGMENT DEBTOR GERMAN SIMAKOVSKI'S MOTION TO COMPEL STATEMENT OF AMOUNT REQUIRED TO SATISFY JUDGMENT

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Case Number: 23VECV00587 Hearing Date: August 24, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RAAFAT S.

ISKANDER AND KOHARIK

T. ISKANDER, AS TRUSTEES OF THE

RAAFAT S. ISKANDER AND KOHARIK

T. ISKANDER REVOCABLE LIVING

TRUST, DATED OCTOBER 7, 2004,

Plaintiffs,

vs.

GE HOLDINGS LIMITED LIABILITY

COMPANY, A CALIFORNIA LIMITED

LIABILITY COMPANY, AKA GE

HOLDINGS LLC; GERMAN SIMAKOVSKI

aka GREG SIMAKOVSKI; ROGER

ANDERSON AS THE TRUSTEE OF THE

RWA TRUST DATED 3/14/2014; ALL

PERSONS UNKNOWN, CLAIMING ANY

LEGAL OR EQUITABLE RIGHT, TITLE,

ESTATE, LIEN, OR INTEREST IN THE

PROPERTY DESCRIBED IN THIS

VERIFIED COMPLAINT FOR DAMAGES

ADVERSE TO THE PLAINTIFFS' TITLE,

OR, ANY CLOUD UPON THE

PLAINTIFFS' TITLE THERETO and DOES

1 through 50, inclusive,

Defendants.

CASE NO: 23VECV00587

[TENTATIVE]

ORDER RE:

JUDGMENT

DEBTOR GERMAN

SIMAKOVSKI'S

MOTION TO COMPEL

STATEMENT
OF AMOUNT REQUIRED

TO
SATISFY JUDGMENT

Dept. W

8:30 a.m.

August 24, 2026

[TENTATIVE] ORDER: The Court VOIDS Moving
Defendant's motion to compel for failure to pay the filing fees.

Background

This action arises out a fraudulent transfer of title concerning the real property located at t 23018 Ventura Boulevard, Woodland Hills, California, 91364 (herein, Ventura Property). Plaintiffs are Raafat S. Iskander and Koharik T. Iskander, as Trustees of The Raafat S. Iskander and Koharik T. Iskander Revocable Living trust, Dated October 7, 2004. This trust has held title to the Ventura Property since 2005.

Plaintiffs allege that in November 2022 Moving Defendant German Simakovski and Defendant GE Holdings LLC carried out a scheme to transfer title to the subject property to GE Holdings LLC without the Plaintiffs' consent or knowledge.

On February 7, 2023, Plaintiffs filed suit, alleging nine causes of action: 1) Declaratory Relief; 2) Quiet Title; 3) Cancellation of Written Instrument (Grant Deed); 4) Cancellation of Written Instrument (Deed of Trust); 5) Slander of Title; 6) Fraud; 7) Conspiracy to Commit Fraud; 8) Elder Abuse (Financial); and 9) Elder Abuse (Intentional Infliction of Emotional Distress).

On April 6, 2023, defaults were entered against Moving Defendant Simakovski as well as Defendant GE Holdings LLC.

On November 7, 2023, Moving Defendant filed a motion to vacate and set aside the entry of default and default judgment on the grounds that Moving

Defendant did not have sufficient actual notice of the action pending against it and that any default judgment entered against him is void for lack of proper service.

On December 5, 2023, this Court DENIED Moving Defendant's motion to vacate, finding that Moving Defendant had failed to meet their burden of proof under CCP § 473.5 or CCP § 473(d). Thus, this case has effectively been resolved since 2023.

On June 1, 2026, Moving Defendant German Simakovski, in pro per, filed the instant Motion to Compel Statement of Amount Required to Satisfy Judgment Creditors. Moving Defendant also filed a request to waive court fees.

On June 26, 2026, this Court heard Moving Defendant's ex parte fee waiver hearing. Moving Defendant did not attend the hearing. Thus, the Court denied this request.

Now, the Court hears Moving Defendant's Motion to Compel Statement of Amount Required.

Discussion

Moving Defendant moves to compel a statement of amount required to satisfy judgment creditors from Plaintiffs, pursuant to CCP § 724.050. (Mot. to Compel, p. 2:7-17.)

Under CCP § 724.050, "the judgment debtor, . . . may serve personally or by mail on the judgment creditor a demand in writing that the judgment creditor do one or both of the following: File an acknowledgment of satisfaction of judgment with the court . . . [or] Execute, acknowledge, and deliver an acknowledgment of satisfaction of judgment to the person who made the demand." (CCP § 724.050(a)(1-2).)

Additionally, under CCP § 724.050(b), if the judgment creditor does not comply with this demand within 15 days, "the person making the demand may apply to the court on noticed motion for an order requiring the judgment creditor to comply with the demand." (CCP § 724.050(d).)

Here, Moving Defendant asserts that they served Plaintiffs with a demand under CCP § 724.050, but that Plaintiffs did not respond within 15 days.

(Mot. to Compel, Simakovski Decl. ¶¶ 6, 8.)

However, before reaching the merits of this motion, the Court must first address a crucial procedural issue. Namely, it appears that Moving Defendant has not paid the filing fee for this motion. Under GOV § 68634, "If an application is denied in whole or in part, the applicant shall pay the court fees and costs that ordinarily would be charged, or make the partial payment as ordered by the court, within 10 days after the clerk gives notice of the denial, unless within that time the applicant submits a new application or requests a hearing under subdivision (e). If the applicant does not pay on time, the clerk shall void the papers that were filed without payment of the court fees and costs." (GOV § 68634(g) [emphasis added].)

Here, Moving Defendant filed a request to waive court fees on June 1, 2026. On June 26, 2026, this Court heard this request. (Minute Order, 6/26/26.) This Court denied Moving Defendant's request, because Moving Defendant did not attend the hearing. (Ibid.) Notice of this denial was served to Moving Defendant by the clerk on the same day. (Certificate of Mailing, 6/26/26.) Thus, under GOV § 68634(g), Moving Defendant had until July 6, 2026, to pay the filing fee for this motion. As pointed out in the Opposition papers, Moving Defendant has yet to pay the filing fees. (Opp. pp. 5:4-24.) Thus, this Court is obligated to void this motion.

For this reason, the Court VOIDS Moving Defendant's Motion to Compel for failure to pay filing fees.

Conclusion

The Court VOIDS Moving Defendant's motion to compel for failure to pay the filing fees.

IT IS SO ORDERED, Plaintiffs TO GIVE NOTICE.

August 24, 2026

Judge of the Superior Court